

Suraj Bhan vs Kusum Lata @ Pinki on 4 October, 2010

Author: Alok Singh

Bench: Alok Singh

IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH

C.R. No. 3020 of 2010

Date of Decision: 04.10.2010

Suraj Bhan

.... Petitioner

Versus

Kusum Lata @ Pinki

... Respondent

CORAM: HON'BLE MR. JUSTICE ALOK SINGH

Present : Mr. Bijender Dhankhar, Advocate
for the petitioner
Mr. Vivek Thakur, Advocate
for the respondent

ALOK SINGH, J. (ORAL)

Present petition is filed challenging order dated 13.4.2010 passed by Addl. District Judge, Sonapat whereby an application moved by the wife-respondent under Section 24 of the Hindu Marriage Act was allowed and husband was directed to pay maintenance pendent lite @ Rs. 7,000/- per month from the date of filing of the application. Petitioner-husband was also directed to pay Rs. 4000/- towards the litigation expenses.

Undisputedly, gross salary of the husband-petitioner is Rs. 28,000/- per month and carry home salary is Rs. 17,870/-. Undisputedly, two children born out of the wedlock of the parties are residing with the mother/respondent. Rs. 7000/- per month for the wife and two minor children can not be said to be on the higher side, in view of the carry home salary of the husband-petitioner i.e. Rs. 17,870/-.

Impugned order requires no interference. Dismissed.

(ALOK SINGH) 04.10.2010 JUDGE reena